

LAW353D

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Project: Making Space for Indigenous Legal Orders – *Song: Landscapes*

My Background

Outside of my studies, I grew up singing and performing in a band with my siblings called DEYS. We write music about global problems, human rights, social justice etc. and use our music to awareness-raise and advocate for various issues. Our songwriting comes from a place of seeking to instill and inspire hope, bring people together, and advocate for proactive change.

Our recent song, “Raise Our Voices,” is currently featured with the United Nations and Jeunesses Musicales International, for the International Labour Organization (ILO)’s *Music Against Child Labour* campaign. We also wrote the song, “[Champions](#),”¹ for the 2015 Pan Am / Parapan Am Games. It was featured on CBC Radio and various mainstream news media outlets to highlight communities and countries coming together to celebrate diverse abilities and peoples coming together in the spirit of competition and international relationship-building.

Project Summary

The overarching theme I tried to convey through this project is tied to what we learned in the course on “Making Space for Indigenous Legal Orders” and the “Duty to Learn,” and what I interpret the course overall tried to instill in students. My goal for this project was to have the song convey and have the effect of illustrating that my generation or this “next” generation of lawyers

¹ <https://www.cbc.ca/news/canada/toronto/singing-siblings-pen-song-for-pan-am-games-1.3158414>

and judges have a responsibility and duty to learn about different Indigenous legal orders and recognize that these should be balanced and included with our current Common Law. My written analysis of this project is focused more on the ‘legal perspective’ and in recognition that reconciliation is a complex matter. The song, “Landscapes”, is meant to emphasize and narrate for law students and legal practitioners the approach we should be taking when practicing the law, as well as how our legal system in Canada should be applied broadly. It is about transcending our presupposed notions on what constitutes “Aboriginal law” from a Eurocentric lens, and reformatting our preconceptions to determine ways to question our approaches to improve and integrate a multifaceted “Indigenous lens.”

Process, Meaning, Analysis

Keeping with a central theme learned and discussed in class, and grounded by Chief Justice Finch, of the “duty to learn,” I started this project with this mindset to position myself in a headspace that included unravelling my own biases, critically thinking about my positionality and contextualizing my understanding of Canadian law and my own advocacy efforts.

Canada has always been and continues to be a “multi-jural” nation.² This is reflected in our historical and contemporary cultural and territorial landscape. Upon interviewing Terri-Lyn Williams about her legal work and musical career, I was inspired to pick a word that would form the foundation of the lyrical component of my song. After doing several read-throughs of readings assigned for this course, words that I contemplated using as a basis for the song included: nation, “multi-jural,” making space, duty, challenge, supernatural, sacred, teachings, respect, and understanding. While all of these words and phrases do play a role in the song and lyrics to some

² Finch CJ “Indigenous Legal Orders and the Common Law Paper 2.1” (2012) at 2.1.1

extent, the vigor of the word “landscape” I found to best encompass the message, tone, and effect of the theme and concept of ‘duty to learn’, ‘mutual respect’, and ‘creating space’ that I was trying to convey both metaphorically and practically/legally.

Indeed, the word landscape illustrates both the physical and tangible context of Canada and its geographical history. The reality is this is historically and rightfully the land of Indigenous peoples. As Chief Justice Finch writes, Canadian society today “...must find a way to exist together with a pre-existing cultural landscape.”³ With this in mind, legal practitioners ought to recognize that when integrating Indigenous legal perspectives and principles, the “right way” of doing things is open to interpretation and variance across legal orders as the right thing itself.”⁴ This is significant to carry at the forefront of applying a foundation or structure within our law that mixes Indigenous principles (recognizing that there is no single “indigenous” culture) with the common law because it gives effect to context, sociopolitical dynamics, and identities. The latter tenet is also worthwhile noting as a relationship between identity and ‘home.’ This is central to our sense of individual or collective personhood as human beings within society.

For non-indigenous, non-European, Canadians who call Canada home, like myself, we must recognize that we ourselves are also occupiers and settlers of this land. Particularly for future legal practitioners this is something we need to have at the constant forefront of our practice no matter what field of law we are going into. While efforts continue to be challenging in our legal landscape today for practitioners to advocate for the integration of Indigenous practices in our law, i.e. oral histories, collective recognition can enable us to ensure systematic change – even

³ *Ibid* at para 38

⁴ *Ibid* at para 28

gradually. As Professor Jackson highlights, “humility, respect, and receptivity ...in our approaches to indigenous legal orders...” can strengthen the act of making space for indigenous legal orders.⁵

Moreover, continuing with Chief Justice Finch’s point and as emphasized in Professor Michael Jackson’s conference paper, *A Reimagined and Transformed Legal Landscape*, the major challenge for integrating Indigenous legal orders within the Canadian constitutional framework is not recognition, rather “how can space be made for two legal orders co-existing when the participants in the reconciliation process (lawyers, judges, law makers, academics) perpetuate, unconsciously or consciously a Euro-centric world view?”⁶ Thus, when approaching this reformulation or integration of Indigenous laws with the Canadian common law system, it is important to recognize that “...Indigenous laws are complex and reflect a world view, traditions, narratives and concepts about the meaning of law and civilization which are unfamiliar to those untrained to discern their messages and metaphors.”⁷ Thus, when thinking about positionality and efficacy in this case, legal practitioners and lawmakers must recognize that Indigenous laws need to be viewed through the lens of Indigenous cultures.⁸

This is also why taking this class has been so important to me as a law student, and especially having guest speakers from a breadth of backgrounds to hear different perspectives and context of how the law in practice and the lived realities of Indigenous peoples intersect. Working on this project made me think back to first year law as well. While taking Aboriginal Law for one term in first year as part of the Constitutional law course, I realized Aboriginal Law should actually be its own separate full-year course to gain a more substantive and immersive understanding of

⁵ Michael Jackson, “A Reimagined and Transformed Legal Landscape” (2012) CLEBC: Indigenous Legal Orders and the Common Law at page 2

⁶ *Ibid* at page 1

⁷ *Ibid*

⁸ *Ibid*

the importance and complexity of Indigenous laws. As Finch CJ articulates, “from the outset of our education (as lawyers) we are immersed in a particular context and point of view. This saturation far transcends our legal training...by our understanding of place, kinship, and ideas about personhood.”⁹ If our own educational legal foundation is not strong enough, that is, has not given a solid basis to critically think about our position as future legal practitioners and the role of our profession as it ought to intersect with Indigenous legal orders and society, then we cannot move forward with reconciliation or improving our domestic judicial system. The song, “Landscapes” attempts to question this and make listeners think about ‘unlearning’ and also encouraging aspirations to sharpen the tools and avenues used to create a lasting change in our legal practices through recognizing our history of colonial enterprise that still exists today. This allows us to look and analyze the legal system as it exists currently and think more deeply and critically about what it *should* look like – the first step towards creating positive change.

Additionally, one of the crucial lines in the song is the lyric in the chorus, “to move forward we need to look back.” This lyric has a multitude of meanings behind it. It starts from a place of acknowledging that we, as both current and incoming legal practitioners, must be communicating with Indigenous communities or at the very least trying to understand our positionality in relation to the history of Indigenous peoples in Canada. It is important for practitioners to be learning from our past, particularly Canada’s colonial history and how that history continues to play a role in our legal system, academic, and landscape today. The lyrics are also meant to be interpreted broadly and were written in a way to communicate with different parties and generations on how they can

⁹ Finch CJ “Indigenous Legal Orders and the Common Law Paper 2.1” (2012) at para 34

come to an understanding through their own lens but also in a way that is communicative and respectful of the other “side” – Indigenous communities and practices.

The duty must be placed on new practitioners joining the legal field. We are the lawyers, legal scholars, judges, etc. who will be participating in an institution that still has a long way to go to include Indigenous ideas, practices, and systems. Often times there seems to be a reliance on Indigenous groups themselves to “teach” non-Indigenous peoples about their history, culture, practices, however, it is also the responsibility of non-Indigenous practitioners as well to seek out the knowledge and bring forward our values and practices with humility.¹⁰ This balance is important.

Musically, the song uses a mix of minor and major chords, which I intentionally used to illustrate this balance that is needed in our legal system in order to make it “sound.” The major chords give a hopeful and positive undertone, to show that that there remains work to be done by legal practitioners to include Indigenous ideas and orders but that collectively we can move forward in an effective way. The minor chords are there to acknowledge our country’s colonial history and the lasting ramifications that has had on Indigenous communities. This is why mixing both is important because not only does it instill the importance of relationship-building, but also emphasizing that we cannot mix and balance ideas and practices and move forward without truly acknowledging our past and peoples.

The process of finalizing the piece of music was also important to this project. As the music software used requires mixing both the instrument and vocal sound. Again, this act of physically combining variant aspects enabled me to de-tach from one “way” of doing things, and instead enter

¹⁰ *Ibid* at para 45

a space that allowed me to blend and form something special built on an end-goal. Applying this artistic concept to the institutionalized legal system, we can come to an understanding that there is no certainty on one “right” way towards reconciliation, but that a blending of perspectives is necessary.

Overall, this project has been the most meaningful to me throughout my time in law school. While on an academic level, it enabled me to read through and think critically about case law and papers that touch the hallmarks of Indigenous legal practices, issues, and experiences, it also highlighted where the Canadian common law has the potential to be moving to. On a personal level, the process of creating this song was a reminder to recognize there is much work to be done and that I have a responsibility as a future legal practitioner to include Indigenous narratives while recognizing where my positionality fits into that, and that the legal system needs my generation to collectively advocate for understanding, justice, context, and respect for Indigenous peoples. Sharing understanding and knowledge, and respecting a kind of reciprocal principle between a multi-principled system, can be a strong start to move forward for “making space” for Indigenous legal orders in the Canadian legal system and practice as it currently stands.